TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 25, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Staff: Mike Robertson, Kara Browder, Chris Swalhah, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Duke moved for approval. Mr. Butner seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Butner moved for approval of the minutes. Mr. Wood seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

- All correspondence received was linked with the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-45-21, 130 Middle Street, TMS# 532-09-00-033. Request relief from the strict application of §156.313(3)(d) to allow 8% of the Building Area Ratio (BAR) to be comprised of porches. The ordinance requires that at least 10% of the BAR must be comprised of porches. CORRESPONDENCE**

- Ms. Browder reviewed staff comments with the Board.

- Ms. Lisa Holmes, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Hopkins moved for approval as submitted based on findings that the hardship criteria have been met, no detriment to the neighborhood and it would enhance the property. Ms. Stevens seconded the motion. All in favor.*

2. **Case V-46-21, 704 Remley Lane, TMS# 514-05-00-058. Request relief from the strict application of §156.303(C)[Table] to allow a 20-foot encroachment into the front yard setback. The ordinance requires a 30-foot front yard setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Thomas Callum, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that part 3 of the 4-part test of hardship has not been met as failure to construct a garage would not unreasonably restrict the use of the property. Mr. Duke seconded the motion. All in favor.*

3. **Case V-47-2021, 203 Coleman Boulevard, TMS# 517-15-00-099. Request for relief from the strict application of §156.108 (A)(2) to allow a fifty (50) foot two-way drive aisle curb cut separation. The ordinance requires a 150-foot two-way drive aisle curb cut separation.**

Mill Street, TMS# 517-15-00-100. Request for relief from the strict application of §156.108 (A)(1) to allow fifty (50) foot one-way drive curb cut separation. The ordinance requires a 75-foot one-way drive curb cut separation.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Giles Branch, Earthsource Engineering, reviewed the request with the Board.

- *Mr. Barrow moved for denial based on findings that #1, #2, and #3 of the hardship criteria have been met, but does not meet #4 as it would be a detriment to the public good and this area would be damaged if the variance was approved. Mr. Wood seconded the motion. Motion passed on a 4 to 3 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins and Mr. Wood in favor; Mr. Butner, Ms. Stevens, and Mr. Duke opposed.*

4. **Case V-48-2021, 720 South Shelmore Boulevard, TMS#514-00-00-271. Request relief from §156.326(C)(2)(e)(1) to allow nonresidential uses on the same floor as residential uses. The ordinance requires no dwelling unit is to be located on the street level, or any level that has nonresidential uses.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Angelos Scalia reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- Mr. Scalia asked for a deferral.

- *Mr. Barrow moved to approve the request for deferral by the applicant to the next meeting. Ms. Stevens seconded the motion. All in favor.*

5. **Case V-49-2021, 276 Bayview Drive, TMS# 517-05-00-083. Request relief from §156.106(B) to allow a 98 square foot encroachment into the 30-foot setback for all impervious**

surfaces. The ordinance requires a 30-foot setback for all impervious surfaces on property located in any zoning district which shall apply to the DHEC-OCRM critical line. CORRESPONDENCE

- Ms. Browder reviewed staff comments with the Board.

- Mr. Catalin Vrinceanu and Ms. Liliana Hudescu reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- **Mr. Wood moved for denial based on the findings that there are no extraordinary conditions, conditions of this property apply to other property in vicinity, and the inability for a pool would not unreasonably restrict the use of the property. Mr. Barrow seconded the motion. All in favor.**

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:50 pm.

Submitted by,
L. Lynes
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